

24STCV25492 24STCV25492

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C08%2F14%2F2026

Source SHA-256: feb91131f24f451df39e6953c78443e8b857b7ed070144b68a02ba39df497d57

Case Number: 24STCV25492 Hearing Date: August 14, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

DEANNA GILMORE, et al.

vs.

SHAOLUN KU AND

YULING LIN,

TRUSTEES OF THE

KU LIVING TRUST, et al.

Case

No.: 24STCV25492

Hearing Date: August 14, 2026

Defendants'

demurrer is OVERRULED. Defendants' motion to strike is DENIED.

On 10/1/2024,

Plaintiffs Deanna Gilmore, John Gilmore, Tristian Gilmore, and Anthony Sagasta (collectively, Plaintiffs) filed suit against Sholun Ku and Yuling Lin, trustees of the Ku Living Trust, and Virginia Square, LLC (collectively, Defendants). On 4/8/2026, Plaintiffs filed a first amended complaint (FAC) alleging: (1) breach of contract; (2) negligence; (3) breach of implied warranty of habitability; (4) negligence per se; (5) private nuisance; (6) premises liability; (7) constructive eviction; (8) fraudulent concealment; and (9) intentional infliction of emotional distress (IIED).

On 4/10/2026, Defendants demurred to Plaintiffs' eighth and ninth causes of action.

Discussion

Defendants

argue that Plaintiffs have failed to allege sufficient facts to state a claim for fraudulent concealment or IIED.

After

review, the Court disagrees.

As

to the fraud cause action, Plaintiffs allege that “[p]rior to Plaintiffs’ tenancy, Defendants were aware of prior water intrusion issues and/or moisture conditions affecting the Subject Property but failed to disclose these conditions to Plaintiff” and that “Defendants intentionally concealed these conditions in order to induce Plaintiffs to enter into and remain in the lease.” (FAC ¶ 95, 99.)

Accepted

as true at the pleadings stage, these allegations are sufficient to show (1) defendant concealed or suppressed a material fact, (2) defendant was under a duty to disclose the fact to the plaintiff, (3) defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115.)

As

for the IIED claim, Defendants argue that Plaintiffs have not alleged facts which could show outrageous or extreme conduct. However, this is a factual determination not appropriate made at the pleadings stage. Given that Plaintiffs have alleged facts which could show fraud and breach of the warranty of habitability, Plaintiffs have alleged facts which could support an IIED claim at this stage of the proceedings.

Based
on the foregoing, Defendants' demurrer is overruled.

Motion to Strike

Defendants
argue Plaintiffs cannot support a prayer for punitive damages or a request for attorney fees.

As set forth
above, the Court overruled Defendants' demurrer to the fraud and IIED claims. Accordingly, Plaintiffs have alleged facts which could show malice, oppression, or fraud.

As
for the attorney fees provision, Plaintiffs allege in the FAC that they are entitled to attorney fees recoverable under the Lease Agreement. Accordingly, the Court disagrees with Defendants' contention that they have not alleged any legal basis for recovery of attorney fees.

Based
on the foregoing, Defendants' motion to strike is denied.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.